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Attorneys for Plaintiff

MONTANA FOURTH JUDICIAL DISTRICT COURT

MISSOULA COUNTY

OLIVIA HOCKENBROCH,
Plaintiff,

vs.

TRUDY ZIMMER and JANE/JOHN
DOES A-Z,
Defendants.

Dept. No. _____
Cause No. DV-20-_____

COMPLAINT AND DEMAND
FOR JURY TRIAL

The Plaintiff, Olivia Hockenbroch (Olivia), through counsel, for her
Complaint and Demand for Jury Trial (Complaint), states and alleges as follows:

STATEMENTS/ALLEGATIONS COMMON TO ALL COUNTS

1. Olivia was, at all times relevant to this matter, a resident of Missoula County, Montana.
2. Upon information and belief, Defendant Trudy Zimmer (Defendant) was, at all times relevant to this matter, a resident of Sioux Falls, South Dakota.

1 3. The July 8, 2017 motor vehicle vs. bicycle crash at issue in this matter
2 occurred in Missoula County, Montana.

3
4 4. Missoula County is a proper venue for this cause of action.

5 COUNT I, NEGLIGENCE *PER SE*

6 5. Plaintiff incorporates by reference all statements and allegations set forth
7 above as if again re-pled verbatim.

8 6. On or about July 8, 2017, at the intersection of Higgins Ave. and
9 Broadway St. in Missoula, Missoula County, Montana, the Defendant committed
10 the offense of failure to yield right of way by crashing her Jeep SUV into Olivia,
11 who was riding her bicycle in the designated bicycle lane, causing Olivia to suffer
12 serious personal injuries.

13 7. The Defendant failed to keep a lookout.

14 8. The Defendant breached her duty of ordinary care.

15 9. The Defendant failed to drive her vehicle in a careful and prudent
16 manner.

17 10. The Defendant was negligent in the operation of a motor vehicle.

18 11. The Defendant violated one or more motor vehicle statutes in
19 connection with the subject collision. Accordingly, the Defendant is negligent *per*
20 *se*.

21 12. The Defendant's negligence is the proximate cause and cause in fact of
22 Olivia's past and future special damages, including, but not limited to: Doctors'
23 bills, hospital bills, physical therapy bills, diagnostic expenses, prescription
24 medication costs, other healthcare and medical expenses, loss of health, and loss of
25 functional capacity.

26 13. The Defendant's negligence is the proximate cause and cause in fact of
27 Olivia's past and future general damages, including, but not limited to: Pain and
28
29
30
31

1 suffering, loss of enjoyment of life, loss of established course of life, and
2 emotional distress.

3 14. The Defendant is liable to Olivia for damages.

4 COUNT II, JANE/JOHN DOES A THROUGH Z

5
6 15. Defendants Jane/John Does A through Z consist of individuals,
7 corporations, limited liability companies, or other entities, presently unknown, but
8 against whom the Plaintiff may have claims, and who may be liable in whole or in
9 part for the injuries and damages suffered by the Plaintiff. The Plaintiff reserves
10 her right to amend this Complaint when the identity of any unknown defendant is
11 determined.

12 DEMAND FOR JURY TRIAL

13
14 Plaintiff demands trial by jury on all issues so triable.

15 WHEREFORE, Plaintiff respectfully requests:

16 1. Judgment against Defendant to compensate Plaintiff for her past and
17 future general and special damages, in an amount to be determined at trial.

18 2. Judgment against the Defendant for the costs incurred by the Plaintiff in
19 commencing and prosecuting this action.

20 3. Such other and further relief as deemed just, proper and equitable by this
21 Court or a jury.

22
23 DATED June 10, 2020.

24 MACDONALD LAW OFFICE, PLLC

25 By: 
26 Attorney for Plaintiff

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VERIFICATION

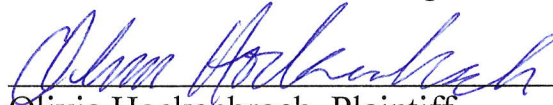
STATE OF MONTANA)

: ss.

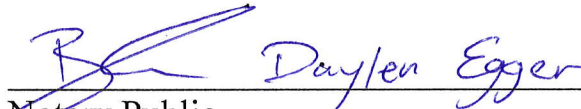
County of Missoula)

Olivia Hockenbroch, being first duly sworn upon her oath, deposes and says:

That she has read this document and the factual statements and assertions set forth herein are true and accurate to the best of her knowledge and belief.


Olivia Hockenbroch, Plaintiff

SUBSCRIBED AND SWORN to before me this 10th day of June, 2020.


Notary Public

